

25CHCV03720 25CHCV03720

County: los-angeles

Division: Civil Law and Motion

Department: F47

Hearing date: 2026-07-22

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Case Number: 25CHCV03720 Hearing Date: July 22, 2026 Dept: F47

Dept. F47

Date: 7/22/26

Case #25CHCV03720

MOTION FOR
RECONSIDERATION

AND/OR

RELIEF FROM
STRIKING ANSWER & ENTERING DEFAULT

Motion filed on 6/30/26.

MOVING PARTY: Defendant Mario Lopez

RESPONDING PARTY: Plaintiff George H. Reich

RELIEF REQUESTED: An order reconsidering,
vacating, and setting aside the Court's 6/24/26 Minute Order striking
Defendant's answer and entering default.

RULING:

SUMMARY OF FACTS & PROCEDURAL HISTORY

On 10/17/25, Plaintiff George H. Reich (Plaintiff) filed this action against Defendant Mario Lopez (Defendant) for: (1) Tortious Breach of Warranty of Habitability; (2) Breach of the Covenant of Quiet Enjoyment; (3) Nuisance; (4) Business & Professions Code 17200, et seq.; (5) Negligence; (6) Breach of Contract; and (7) Violation of the Los Angeles Tenant Anti-Harassment Ordinance – LAMC 45.33, et seq.

On 12/3/25, representing himself, Defendant answered the complaint.

On 5/20/26, Defendant failed to appear at the Case Management Conference. (See 5/20/26 Minute Order). Therefore, the Court set an Order to Show Cause as to why sanctions, including monetary sanctions and/or striking of Defendant's Answer and entering default, should not be imposed for 6/24/26. Id.

On 6/24/26, Defendant failed to appear at the Order to Show Cause hearing and the Court ordered Defendant's answer stricken and entered Defendant's default. (See 6/24/26 Minute Order).

On 6/30/26, Defendant, representing himself, filed the instant motion seeking an order reconsidering, vacating, and setting aside the Court's 6/24/26 Minute Order striking Defendant's answer and entering default. No opposition or other response to the motion has been filed.

On 7/15/26, Defendant filed a Substitution of Attorney substituting in attorney Arthur-Jon Mark Kotanjian as his counsel in this matter.

ANALYSIS

There is an issue with the service of the instant motion. The proof of service for the motion indicates that it was mailed to Dignity Law Group, APC at 6314 Van Nuys Blvd., Ste. 215, Van Nuys, CA 91401-2655 which is the address listed for Dignity Law Group, APC on its website. However, the address of record for Plaintiff's counsel, Joseph Wind Kellener of Dignity Law Group in eCourt is: 14401 Sylvan St., Ste. 102, Van Nuys, California 91401 which is also

the address listed on the complaint. As such, it is unclear if Plaintiff had proper notice of the hearing on this motion.

Defendant indicates that his failure to appear at the Order to Show Cause re Sanctions was not willful as he believed the matter would not proceed based on a settlement reached between the same parties regarding the same property in an unlawful detainer action. (See Lopez Decl.). The Court finds that Defendant's declaration provides a sufficient basis to set aside the Court's 6/24/26 order based on Defendant's mistake, inadvertence, surprise and/or excusable neglect. See CCP 473(b).

Defendant also indicates that Plaintiff's attorney indicated that he had no objection to setting aside the Court's order. (See Lopez Decl. ¶12).

CONCLUSION

If Plaintiff's counsel appears and has no objection to the granting of the motion, the motion will be granted. If not, the hearing on the motion will be continued so that Defendant can re-serve the motion and the notice of continuance on Plaintiff's counsel's address of record.